



## *Author Services, Inc.*

*Representing the literary, theatrical and musical works of L. Ron Hubbard*

October 21, 2016

U.S. Copyright Office  
James Madison Memorial Building  
101 Independence Avenue, S.E.  
Washington, DC 20559-6000

**Re: U.S. Copyright Office Notice of Inquiry (NOI)  
Section 1201 Study: Request for Additional Comments  
Docket No. 2015-8**

Dear Sirs:

Thank you for the opportunity to provide comments. The following is the information we would like to provide in response to the above referenced Notice of Inquiry.

Specifically, we would like to address the following:

1. Proposals for New Permanent Exemptions. C. Computer Programs

It is of utmost importance for the Copyright Office, in seeking to create new permanent exemptions from the general prohibition against the circumvention of technological protection measures ("TPMs"), to recognize and account for the fact that there are only limited circumstances in which permissibly circumventions are appropriate. We certainly understand the concern of some consumers purchasing software-driven products when it is necessary for the consumers to be able to repair these products on their own initiative. Many of these products are purchased under unilateral "shrink-wrap" or "click-wrap" agreements, which govern the terms of use of the software contained within the product.

Yet within the massive umbrella of consumer products, there are many different categories, and the mere fact that they all incorporate software does not alone warrant treating these products as the same under a statutory exemption to the prohibition against circumvention of TPMs.

There are some business models, for example, for devices and the software that run the devices, where the device can only be purchased and used by someone who is qualified and specifically trained on the use of the device. Because of these strict qualification requirements, before the person purchasing the device can physically possess it they must agree to and sign a

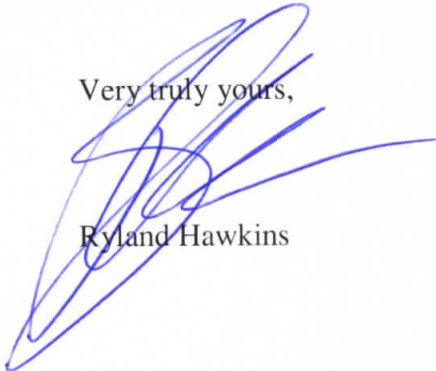
7051 Hollywood Boulevard, Hollywood, California 90028-6007  
(Telephone) 323-466-3310 (Fax) 323-466-6474  
(E-mail) [lrhmasterpieceeditions@authorservices.com](mailto:lrhmasterpieceeditions@authorservices.com)

purchase agreement for the device and a separate license agreement for the software contained in it. These agreements are not unilateral "shrink-wrap" or "click-wrap" agreements; they are negotiated and agreed to as a condition of purchase and use of the software and the device. The agreements contain a number of restrictions concerning the use of the device with its software, including restrictions on reverse-engineering the device/software, prohibitions on copying the software, and prohibitions on transferring the device to a third party unless certain conditions are met (including both agreements being signed by the third party before taking physical custody of the device). Permitting the circumvention of TPMs in the context of this type of software-driven device would go much farther than the situation where a consumer needs to be able to access the software under a "shrink-wrap" license for its basic functionality—it would essentially circumvent the entire business model of the contractual negotiation process as a tool to protect its product and the copyrights therein.

The proposed exemptions that the Copyright Office is reviewing and entertaining would adversely affect business models such as the one discussed above. Statutory circumventions would directly contradict the business terms and effectively void the core of the business model, undoubtedly leading to economic harm. Any changes to the Section 1201 of the U.S. Copyright Act for software-enabled devices should be narrowly drafted so as not to override the terms of a negotiated software license. The copyright laws should not invalidate such an arrangements or business models and we would ask that this be respected.

If there is any further information that I can provide, please let me know. I can be contacted at the above address and phone number or emailed at [ryland@authorservicesinc.com](mailto:ryland@authorservicesinc.com).

Very truly yours,



Ryland Hawkins